London Borough of Camden
Information and Records
Management
Judd Street
London.
WC1H 9JE
e-mail: foi@camden.gov.uk

Date: 15/12/2025
Case reference: CAM11626

Dear Requester

Thank you for your request for information dated 21/11/2025 about **properties exempt from Council Tax.** We have dealt with this under the Freedom of Information Act 2000.

Response

The council holds the information requested. However, we are withholding the information because it is exempt as explained below. We have explained where we are withholding information and what exemption applies. Please see the refusal notice at the end of the answer which explains how and why it applies.

I am writing to request information under the Freedom of Information Act 2000.

I am seeking data relating to properties within your authority area that are currently exempt from Council Tax under the following classes:

• *Class E – Property left empty where the liable person is in hospital.*

• *Class F – Property left empty following the death of the liable person.*

Specifically, I request:

1. Please provide the number of properties in each full postcode (not just the outward or first-half code) where either Class E or Class F exemptions are applied.

Purpose and Public Interest

This request is made in the public interest. I am conducting research to:

• Understand housing availability and long-term vacancy patterns in the local area.

• Track the extent to which properties remain empty during the probate process, which can inform local and national housing policy.

Empty homes are a matter of national concern, and greater transparency on exemption data will help inform evidence-based policy solutions.

Crime Risk and Mitigation

I am aware of refusals under Section 31(1)(a) (prevention of crime). I respectfully submit that:

• My request does not seek full property addresses, only aggregated postcode-level counts, eliminating the risk of properties being individually identified.

• Classes E and F typically relate to properties under legal control (executors or solicitors), which are no more vulnerable than those already published through Land Registry data.

• Aggregated data poses no realistic risk of unauthorised occupation or criminal activity.

I am happy for the data to be provided in spreadsheet (Excel or CSV) format if possible.

This information is exempt. Please see the exemption notice set out below.

Refusal Notice

The exemption that applies is:

section 31(1)(a) – Law Enforcement

We do not release the exact postcodes of empty properties. Information released under the FOIA is not just sent to the requester but is effectively published to the world at large.

The exact postcodes would allow squatters or criminals to identify the empty properties this is particularly the case in areas where there may be a higher number of empty properties or there are only a few number of properties to search to find an empty property.

We consider disclosing this information would make empty properties a target of crime. Therefore, this information is exempt from disclosure under section 31(1)(a) of the Freedom of Information Act 2000.

Section 31(1)(a) says that we do not need to provide information that would be likely to prejudice the functions of law enforcement- the prevention and detection of crime.

Camden believes that releasing this information would increase the likelihood of :

- Empty properties being lived in by squatters. Squatting in a residential property is now a criminal offence.
- Empty properties being targeted by vandals or graffiti artists and stripped of materials such as roofing, cables or piping, or otherwise vandalised or damaged.
- Empty properties being targeted by criminals or terrorists for example allowing them to hide or store the proceeds of crime, or criminal or terrorist materials

In the Information Tribunal Case Yiannis Voyias v Information Commissioner and the London Borough of Camden (EA/2001/0007 23 January 2013) the First-tier Tribunal (Information Rights) (the “Tribunal”) upheld Camden’s decision to withhold the addresses of empty houses under section 31(1)(a).

This approach has been followed by both the Information Commissioner (ICO) and other First Tier Tribunal Decisions. For example:

- In 2019 the First Tier Tribunal (EA/2018/0055) upheld Sheffield City Council’s decision to apply s31(1)(a) to the information.
- In 2029 the ICO Decision Notice FS50786336 upheld London Borough of Hackney’s decision to apply s31(1)(a) to the information
- In 2022/3 the First Tier Tribunal upheld the ICO’s decision to uphold London Borough of Hounslow’s decision to withhold the information under s31(1)(a)
- In 2024 the ICO Decision Notice IC-274382-J3Y0 upheld Newark and Sherwood District Council’s decision to withhold the information under s31(1)(a).

The law is settled on this point.

Public Interest Test:

As Section 31 is a qualified exemption we need to consider the public interest test. Factors in favour of

disclosure

- There are general arguments in promoting transparency and accountability of public authorities.
- Raising the profile of vacant properties would help encourage public engagement and debate.

Factors in favour of withholding

- There is an inherent public interest in crime prevention. This was considered in the Voyias case by the Tribunal.
- There is public interest in avoiding the costs associated with squatting, for example repair, security and eviction costs.
- The negative impact of squatting affects the surrounding community and public authorities involved, not just the individual property

We believe that the balance of public interest lies in upholding the exemption and not releasing the information. This decision has been consistently upheld by the ICO and the First Tier Tribunal.

Further Information

We do not give our consent for any names and contact details provided in this response to be sent marketing material. Any such use will be reported to the ICO as a breach of General Data Protection Regulations and the Privacy and Electronic Communication Regulations.

Why not check our Portal Open Data Camden before making a new request as your question may already be answered by a previous FOI response or in one of our many useful and interesting datasets.

Your Rights

If you are not happy with how your response was handled you can request an Internal Review within 2 months of this letter by email to foireviews@camden.gov.uk or post: Information and Records Management Team, London Borough of Camden, Town Hall, Judd Street, London WC1H 9JE. Please quote your case reference number. If you are not satisfied with the Internal Review outcome you can complain to the Information Commissioner's Office at icocasework@ico.org.uk, Telephone: 0303 123 1113, live chat https://ico.org.uk/global/contact-us/live-chat/ or webform https://ico.org.uk/global/contact-us/. The ICO website https://www.ico.org.uk may be useful.

Yours sincerely,

Peter Williams
Information Rights Officer